

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4119

By: West (Tammy) of the House

and

Thompson of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to civil procedure; amending 12 O.S.
12 2021, Section 1148.6, which relates defendant
13 asserting title to real property; requiring bond;
14 providing bond limit; updating statutory language;
15 and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is
18 amended to read as follows:

19 Section 1148.6. A. 1. In all cases in which the defendant
20 wishes to assert title to the ~~land~~ real property or that the
21 boundaries of the ~~land~~ real property are in dispute, he or she
22 shall, before the time for the trial of the cause, file a verified
23 answer or an affidavit which contains a full and specific statement
24 of the facts constituting his or her defense of title or boundary

1 dispute. If the defendant files such a verified answer or
2 affidavit, the action shall proceed as one in ejectment before the
3 proper division of the district court. If the defendant files an
4 affidavit, he or she shall file answer within ten (10) days after
5 the date the affidavit is filed.

6 2. The court may make an order for the safekeeping of the real
7 property subject to this action by ordering a defendant who asserts
8 title to real property to give a bond, payable to the clerk of the
9 court, not to exceed ten percent (10%) of the current market value
10 of such real property, conditioned upon the compliance with the
11 future order or judgment of the court with respect to the subject
12 matter of the controversy.

13 B. In all cases in which the cause of action is based on an
14 asserted breach of a lease by the defendant, or the termination or
15 expiration of a lease under which the defendant claims an interest
16 in the property in a verified answer or affidavit, the plaintiff may
17 proceed with the forcible entry and detainer action instead of an
18 ejectment action.

19 C. No answer by the defendant shall be required before the time
20 for trial of the cause.

21 SECTION 2. This act shall become effective November 1, 2026.

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23 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
24 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended and Coauthored.